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[1] P. L. O. 411.

nated the Division of Liquidation as the organization to carry out functions transferred to the Secretary of Commerce in connection with liquidating the activities of the war-time agencies.

(2) The Director of the Division of Liquidation reports and is responsible to the Under Secretary of Commerce. The internal organization of the Division of Liquidation is established by the Director of the Division on an informal basis and is subject to such current changes as he may make as activities are merged, consolidated, or liquidated.

(b) *Functions and responsibilities.* Pursuant to the authority vested in the Secretary of Commerce by sections 203 and 302 of Executive Order 9841 of April 23, 1947 (12 F. R. 2645), the Director of the Division of Liquidation is designated as the officer and the Division of Liquidation as the agency to perform the following functions transferred to the Secretary under section 203 and section 302 of that order:

(1) Functions under section 124 of the Internal Revenue Code, as amended:

(2) Functions with respect to claims under the Contract Settlement Act of 1944 or any other statute based on actions of or arising out of instructions or requests by the War Production Board or any of its predecessor agencies;

(3) Functions with respect to claims relating to property requisitioned by the Chairman of the War Production Board or by any of his predecessors;

(4) Functions under the Renegotiation Act;

(5) All functions vested in the Temporary Controls Administrator by Executive Order No. 9309 of December 12, 1946 (11 F. R. 14281), not otherwise disposed of by statute or by Executive Order 9841 or any other executive order. Such functions include but are not limited to the following:

(i) Functions of the President under the Stabilization Act of 1942, as amended, vested in the Temporary Controls Administrator immediately prior to the taking of effect of Part III of Executive Order 9841,

(ii) Functions with respect to premium payments under section 2 (e) (a) (2) of the Emergency Price Control Act of 1942, as amended, insofar as such payments relate to copper, lead, and zinc ores,

(iii) Functions with respect to the establishment of maximum prices for industrial alcohol sold to the Government or its agencies, and

(iv) The liquidation of the functions of the Office of Temporary Controls and of the agencies thereof, except liquidation relating to functions specifically transferred to other agencies (by the provisions of this section or otherwise).

(c) *Additional functions.* In addition to the above functions, the Division of Liquidation is assigned, pursuant to the authority vested in the Secretary of Commerce by section 11 of Executive Order 9630 of September 27, 1945 (10 F. R. 12245), the function of liquidating the accounts of the former Foreign Economic Administration.

(d) *Delegation of authority by the Under Secretary to the Director.* Subject to the direction and supervision of the Under Secretary, the Director will formulate the policies, develop and coordinate the programs, and direct all operations of the Division of Liquidation. In carrying out the functions assigned to the Division of Liquidation, the Director is authorized to perform the functions and exercise the powers, authorities and discretions vested in the Secretary with respect to such matters in such manner as he may prescribe. The authority delegated to the Director may be redelegated by him, subject to his direction and control, to such officers of the Department of Commerce as he may designate.

(e) *Actions.* (1) Actions may be brought, maintained and defended in the name of the Director of the Division of Liquidation, and for this and all other purposes, he is deemed Administrator (Chairman, Director or Commissioner, as the case may be) of the functions delegated to him by this section within the meaning of the laws creating such functions.

(2) Every action proposed in regard to the following will be referred to the Solicitor of the Department of Commerce before submission to the Director of the Division of Liquidation:

(i) Functions with respect to the establishment of maximum prices for industrial alcohol sold to the Government or its agencies;

(ii) Functions with regard to protests in connection with any regulations, orders, or price schedules;

(iii) Functions of the President under the Stabilization Act of 1942, as amended, vested in the Temporary Controls Administrator immediately prior to the taking of effect of Part III of Executive Order 9841; and

(iv) Functions with respect to premium payments under section 2 (e) (a) (2) of the Emergency Price Control Act of 1942, as amended, insofar as such payments relate to copper, lead, and zinc ores. Without limitation of the generality of the foregoing, this includes (*a*) appointments to the Board of Review; and (*b*) all proposed final orders and opinions.

(f) *Effect on other orders.* Every order, directive, rule or regulation or other similar instrument relating to any power, function or duty duly transferred to the Secretary and delegated to the Director of the Division by this section, issued by any officer, department or agency heretofore performing such power, function or duty, which is in effect on September 19, 1947, shall continue in full force and effect according to its terms unless and until modified or rescinded by the Director of the Division of Liquidation. (Sec. 3, 60 Stat. 238; 5 U. S. C. Sup. 1002)

WILLIAM C. FOSTER,
Acting Secretary of Commerce.

[F. R. Doc. 47-8669; Filed, Sept. 24, 1947; 9:35 a. m.]

Chapter III—Bureau of Foreign and Domestic Commerce, Department of Commerce

PART 370—GENERAL ORGANIZATION AND FUNCTIONS OF THE OFFICE OF MATERIALS DISTRIBUTION [1]

Sections 370.1 to 370.4 (12 F. R. 2985) are hereby revoked and the following are substituted therefor:

Sec.
370.1 Creation.
370.2 General purpose and functions.
370.3 Organization.
370.4 Functions of organization units.

AUTHORITY: §§ 370.1 to 370.4, inclusive, issued under sec. 3, 60 Stat. 238; 5 U. S. C. Sup. 1002; E. O. 9841, April 23, 1947, 12 F. R. 2645.

§ 370.1 *Creation.* The Office of Materials Distribution was created by Department Order No. 69 of May 4, 1947. Department Order No. 69 (amended) of September 19, 1947, designated the Office of Materials Distribution as the organization through which the Secretary of Commerce will carry out certain functions transferred to him by Executive Order No. 9841 dated April 23, 1947.

§ 370.2 *General purpose and functions.* The general purpose and functions of the Office of Materials Distribution are to carry out certain functions transferred to the Secretary of Commerce by virtue of the provisions of Executive Order No. 9841 of April 23, 1947, and assigned to the Director of the Office of Materials Distribution, by Materials Control Regulation 1 (12 F.R. 2995), in conformity with the terms of statutory authority applicable to such functions, until such statutory authority expires or such functions are integrated with functions of the established organization units of the Department of Commerce.

§ 370.3 *Organization.* The Office of Materials Distribution consists of the (a) Office of the Director, (b) Priorities Division, (c) Rubber Division, and (d) Metals Division.

[1] Orders and regulations of the Office of Materials Distribution appear at 32 CFR Chapter IX.